

Merchant Agreement

This Agreement is made on 16 November 2022 between Riverty GmbH, Rheinstraße 99, 76532 Baden-Baden, Germany (hereinafter "Riverty") and Lumen Retail Group Ltd, 1 Kingsway, London WC2B 6AN, United Kingdom (hereinafter "Merchant"), together the "Parties".

1. Scope of Services

Riverty shall provide the services described in Annex 1 (the "Services") to Merchant in accordance with this Agreement and the service levels agreed therein. Merchant shall provide all information reasonably required for the performance of the Services.

2. Term and Termination

The Agreement commences on the Effective Date for a fixed term of three (3) years. Thereafter either Party may terminate it at any time on six (6) months' notice to the end of a calendar quarter. Termination for good cause without notice remains reserved.

3. Fees and Payment

In consideration of the Services, Merchant pays the remuneration listed in the price schedule. Payment is due fourteen (14) days after invoice date. All amounts are exclusive of value added tax.

4. Limitation of Liability

Except in cases of intent or gross negligence, the aggregate liability of either Party under this Agreement shall be limited to the fees paid in the twelve (12) months preceding the event giving rise to the claim. Neither Party shall be liable for indirect or consequential damages, including loss of profit.

5. Confidentiality

Each Party shall keep confidential all information obtained from the other Party in connection with this Agreement and shall use it solely for the purposes of this Agreement. This obligation survives termination for a period of five (5) years.

6. Data Protection

The Parties shall comply with applicable data protection law, in particular Regulation (EU) 2016/679 and the German Federal Data Protection Act (BDSG). Personal data shall be processed only for the purposes of this Agreement and deleted when no longer required.

7. Governing Law

The laws of Germany apply to this Agreement and to all claims arising from or in connection with it, to the exclusion of its conflict of law rules.

8. Dispute Resolution

All disputes arising out of or in connection with this Agreement shall be finally settled under the Arbitration Rules of the German Arbitration Institute (DIS) by three arbitrators. The seat of arbitration is Frankfurt am Main.

9. Force Majeure

Neither Party shall be liable for any failure to perform its obligations where such failure results from events beyond its reasonable control, including natural disasters, war, pandemics or governmental action, provided that the affected Party notifies the other without undue delay.

10. Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

11. Audit Rights

Merchant may, upon thirty (30) days' written notice and no more than once per calendar year, audit Riverty's compliance with this Agreement during normal business hours. Riverty shall provide reasonable assistance and access to relevant records.

12. Anti-Corruption and Compliance

The Parties warrant that they have not offered, promised or granted any undue advantage to public officials or business partners in connection with this Agreement and will not do so. A breach of this warranty entitles the other Party to terminate without notice.

13. Change of Control

Either Party may terminate this Agreement with immediate effect if the other Party undergoes a change of control, meaning the acquisition of more than fifty percent (50%) of its voting rights by a third party.

14. Notices

All notices under this Agreement shall be in writing and delivered by registered mail or e-mail to the addresses set out above. Notices are deemed received on the next business day.

For Arvato Payment Solutions GmbH:

Managing Director

For Lumen Retail Group Ltd:

Authorised Signatory